

**El Paso County
Delia Briones
County Clerk**

Instrument Number: 00000000119

J.DeRouen

Recorded On: 6/16/2026 2:58:51 PM

Number of Pages: 1

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*****THIS PAGE IS PART OF THE INSTRUMENT*****

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY because of color or race is invalid and unenforceable under federal law.

File Information

Document Number	00000000119
Receipt Number	1998677
Fees	\$12.00



State of Texas
COUNTY OF EL PASO

I hereby certify that this instrument was FILED in the File Number sequence on the date/time printed hereon, and was duly RECORDED in the Official Record of El Paso County, Texas.

Delia Briones
County Clerk
El Paso County, TX



STATE OF TEXAS)
)
COUNTY OF EL PASO)

in the Official Records of El Paso County, Texas as Document Number 20260050328. Lender is the owner and holder of the Note and beneficiary under the Deed of Trust.

WHEREAS, the Note matured and became due and owing in full but was not paid, as a result an Event of Default as defined in the Note and related loan documents has occurred, the Note remains due and payable in full and has not been paid, and by reason of the maturity of the Note the Property as described and defined in the Deed of Trust should be sold.

WHEREAS, Lender has appointed **James W. Brewer** as Substitute Trustee (the "*Substitute Trustee*") in the place of the original trustee, the appointment being made in the manner authorized by the Deed of Trust. Mr. Brewer's contact information is James W. Brewer, Kemp Smith LLP, P.O. Box 2800, El Paso, TX 79999-2800; james.brewer@kempsmith.com; (915) 533-4424.

WHEREAS, Lender has requested that Mr. Brewer as Substitute Trustee sell the Property as described and defined in the Deed of Trust.

NOW, THEREFORE, notice is hereby given that on **Tuesday, July 7, 2026 between 10:00 a.m. and 1:00 p.m.**, the Substitute Trustee will sell the below described Leasehold Estate and other property. The sale will begin no earlier than 10:00 a.m., July 7, 2026, and will conclude not later than 1:00 p.m., July 7, 2026. The sale will take place at the South end of the grounds of the **El Paso County Coliseum, 4100 E. Paisano Drive, El Paso, Texas 79905**, to the highest bidder for cash. The property to be sold is the following Leasehold Estate, together with all Improvements, Easements, Fixtures, Equipment, Personal Property, and all other Property, all of the foregoing capitalized terms as described and defined in the Deed of Trust (collectively the "*Property*"):

All of Grantor's estate, right, title and interest in, to and under the Ground Lease (as hereafter defined) and the leasehold estate of Grantor ("*Leasehold Estate*") in and to the real property described in Exhibit "A" attached hereto and made a part hereof for all purposes. "*Ground Lease*" is the Ground Lease dated December 6, 2004 by and between Grantor, as lessee, and The Board of Regents of the University of Texas System, for the use and benefit of The University of Texas at El Paso, as lessor, a memorandum of which Ground Lease was recorded May 25, 2005 in Clerk's File Number 20050046315, Official Records of El Paso County, Texas, as amended by First Amendment to Ground Lease dated December 6, 2004, Second Amendment to Ground Lease dated November 10, 2008, and Third Amendment to Ground Lease dated July 29, 2015.

Lender has reserved the right to credit bid all or any portion of the indebtedness owing on the Note.

The Deed of Trust encumbers both real and personal property. Formal notice is hereby given of Lender's election to proceed against both the real property and any personal property described in the Deed of Trust in accordance with Lender's rights and remedies under the Deed of Trust and section 9.604(a) of the Texas Business and Commerce Code.

EXHIBIT "A"

[LEGAL DESCRIPTION]

Leasehold rights pursuant to that certain Lease dated 12/06/2004, as amended by First Amendment to Ground Lease dated effective 12/06/2004, between THE BOARD OF REGENTS OF THE UNIVERSITY OF TEXAS SYSTEM, for the use and benefit of THE UNIVERSITY OF TEXAS AT EL PASO, Lessor and HIGH DESERT INVESTORS, L.P., Lessee, as referenced by memorandum of Lease dated 12/06/2004, filed 05/25/2005, in Clerk's File No. 20050046315, Real Property Records, El Paso County, Texas, said Lease covering the following described property:

All of Block 162 and a portion of Block 161, and the portions of vacated streets and alleys included therewith, all in ALEXANDER ADDITION, an addition to the City of El Paso, El Paso County, Texas and being more particularly described as follows:

Property description: A 3.121-acre portion of vacated Kerbey and El Paso Streets and Blocks 161 and 162 and the vacated alleys included therein, Alexander Addition, El Paso, El Paso County, Texas

METES AND BOUNDS DESCRIPTION

The parcel of land herein described is a 3.121-acre portion of vacated Kerbey and El Paso Streets and Blocks 161 and 162 and the vacated alleys included therein, Alexander Addition, El Paso, El Paso County, Texas, and is more particularly described by metes and bounds as follows:

COMMENCING at a city monument at the intersection of the monument lines of Kansas Street (70 Foot right-of-way) and University Avenue (70 foot right-of-way), said monument lines lying 10 feet east and 10 feet north of the respective centerlines of Kansas Street and University Avenue, from which a city monument at the intersection of the monument lines of Kansas Street and Cincinnati Avenue (70 foot right-of-way) bears North 37 degrees 00 minutes 20 seconds West, distance of 1650.46 feet; THENCE, South 52 degrees 59 minutes 40 seconds West along the monument line of University Avenue at 1320.92 feet passing a city monument on the monument line of El Paso Street, a total distance of 1330.92 feet; THENCE North 37 Degrees 00 minutes 20 seconds West, distance of 25.00 feet to a chiseled "X" set on the northerly right of way of University Avenue for the point of BEGINNING of this description. THENCE, North 52 degrees 59 minutes 40 seconds East, along said right-of-way, a distance of 295.23 feet to a 5/8 rebar with cap marked "RPLS 4178" set on the westerly right-of-way of Oregon Street (70 foot right-of-way);

THENCE, North 37 degrees 00 minutes 20 seconds West, along said right-of-way, a distance of 329.94 feet to a chiseled "X" set on the northerly right-of-way of vacated Kerbey Street (70 foot right-of-way vacated May 22, 2001, City of El Paso Ordinance No. 014855);

THENCE, South 52 degrees 59 minutes 40 seconds West, along said right-of-way, a distance of 85.00 feet to a set 5/8 rebar with cap marked "RPLS 4178";

THENCE, South 37 degrees 00 minutes 20 seconds East, a distance of 70.00 feet to a 5/8 rebar with cap marked "RPLS 4178" set on the southerly right-of-way of vacated Kerbey Street;

THENCE, South 52 degrees 59 minutes 40 seconds West, along said right-of-way, a distance of 389.23 feet to a set 5/8 rebar with cap marked "RPLS 4178";

THENCE South 37 degrees 00 minutes 20 seconds East, a distance of 129.94 feet to a set chiseled "X"; THENCE South 52 degrees 59 minutes 40 seconds West, a distance of 36.00 feet to a set 5/8 rebar with cap marked "RPLS 4178";

THENCE South 14 degrees 07 minutes 00 seconds East, a distance of 48.85 feet to a set 5/8 rebar with cap mark "RPLS 4178";

THENCE south 37 degrees 00 minutes 20 seconds East, a distance of 85.00 feet to a chiseled "X" set on the northerly right-of-way of University Avenue;

THENCE north 52 degrees 59 minutes 40 seconds East, along said right-of-way, a distance of 234.00 feet to the point of BEGINNING of this description.